

Korraee Venkata Lakshmi Korada Rama ... vs Korraee Poorna on 14 July, 2025

APHC010189572025

IN THE HIGH COURT OF ANDHRA PRADESH
AT AMARAVATI
(Special Original Jurisdiction)

[3397]

MONDAY, THE FOURTEENTH DAY OF JULY
TWO THOUSAND AND TWENTY FIVE

PRESENT

THE HONOURABLE SRI JUSTICE VENUTHURUMALLI GOPALA
KRISHNA RAO

TRANS. CIVIL MISC.PETITION NO: 132/2025

Between:

1. KORRAEE VENKATA LAKSHMI @ KORADA RAMA LAKSHMI @
NASARI RAMA LAKSHMI, W/O KORRAEE POORNA, D/O NASARI
RAMUDU, AGED ABOUT 25 YEARS, R/O PATHARLAPALLI VILLAGE,
RANASTHALAM MANDAL, SRIKAKULAM DISTRICT. PH-8247561436.

...PETITIONER

AND

1. KORRAEE POORNA, S/o Adinarayana, aged about 27 years, R/o
Door. No.6-13/4-16d, RPM School Road, Tailorpet, Vijayawada -
520001, Ph. No.96765502130

...RESPONDENT

Petition Under Section 24 of the C.P.C. Praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to please to withdraw F.C.O.P.No.396 of 2025 pending on the file of IV Additional District and Sessions Judge, Vijayawada, Krishna District and to transfer the same to Family Court Srikakulam, Srikakulam District and pass

IA NO: 1 OF 2025

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to grant stay of all further proceedings including appearance of the Petitioner in F.C.O.P.No.396 of 2025 pending on the file of IV Additional District and Sessions Judge, Vijayawada and pass
Counsel for the Petitioner:

1. P RAJKUMAR

Counsel for the Respondent:

1.

The Court made the following:

ORDER:

The petitioner/wife filed the present petition under Section 24 of the Code of Civil Procedure, 1908, (for 'short the C.P.C.') seeking for withdrawal of F.C.O.P.No.396 of 2025 on the file of the IV Additional District and Sessions Judge, Vijayawada, Krishna District and transfer the same to the Judge, Family Court at Srikakulam, for trial.

2. The case of the petitioner in brief is as follows:

I. The petitioner is the legally wedded wife of the respondent and their marriage was performed on 17.08.2024, in the presence of the petitioner's family, friends & and well-wishers at Royal Banquet Hall, Vijayawada. After that, due to the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately at her parents' house and depending upon the mercy of her parents at Srikakulam.

II. The learned counsel for the petitioner would further contend that to cause inconvenience to the petitioner/wife, the respondent/husband had filed F.C.O.P.No.396 of 2025 on the file of the IV Additional District and Sessions Judge, Vijayawada, Krishna District, under Section 12(1)(c) of the Hindu Marriage Act, 1955, seeking for dissolution of the marriage and the same is pending for adjudication.

III. Learned counsel for the petitioner would further contended that the petitioner being a woman, depending upon the mercy of her parents at Srikakulam, it is very difficult for her to travel to attend the divorce case proceedings which is situated at a distance of more than 400 Kms from Srikakulam to Vijayawada, without any male assistance and that she was constrained to file the present petition against the respondent/husband seeking for withdrawal of F.C.O.P.No.396 of 2025 on the file of the IV Additional District and Sessions Judge, Vijayawada, Krishna District and transfer the same to the Judge, Family Court at Srikakulam.

3. Heard learned counsel for the petitioner.

4. Though registered notice sent to the respondent was served on him, none appeared for the respondent. Therefore, 'service held sufficient'.

5. Perused the material available on record.

6. The material on record prima facie goes to show that in view of the matrimonial disputes between both the spouses, the petitioner/wife has been residing separately at her parents' house at Srikakulam and the respondent/husband herein had filed F.C.O.P.No.396 of 2025 on the file of the

IV Additional District and Sessions Judge, Vijayawada, Krishna District, under Section 12(1)(c) of the Hindu Marriage Act, 1955 and the same is pending for adjudication.

7. The Apex Court in a case of GEETA HEERA Vs HARISH CHANDER HEERA¹, held by considering the fact that "if a wife does not have sufficient funds to visit the place where the divorce petition is filed by her husband, then the transfer petition filed by the wife may be allowed."

8. The Apex Court in a case of N.C.V. Aishwarya Vs A.S.Saravana Karthik Sha² held as follows:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

9. On considering the submissions made by the learned counsel for the petitioner and in view of the ratio laid down in the aforesaid case laws that in matrimonial proceedings, the convenience of the wife has to be considered than that of the inconvenience of the husband. Therefore, I am of the considered view that there are justifiable grounds to consider the request made by the petitioner/wife seeking for withdrawal of F.C.O.P.No.396 of 2025 on the file of the IV Additional District and Sessions Judge, Vijayawada, (2000) 10 SCC 304 2022 LiveLaw (SC) 627 Krishna District and transfer the same to the Judge, Family Court at Srikakulam.

10. In the result, the present Transfer Civil Miscellaneous Petition is allowed and F.C.O.P.No.396 of 2025 on the file of the IV Additional District and Sessions Judge, Vijayawada, Krishna District, is hereby withdrawn and transferred to the Judge, Family Court at Srikakulam. The learned IV Additional District and Sessions Judge, Vijayawada, Krishna District, shall transmit the case record in F.C.O.P.No.396 of 2025, to the Judge, Family Court at Srikakulam, duly indexed as expeditiously as possible preferably within a period of two (02) weeks from the date of receipt of a copy of this order. There shall be no order as to costs.

As a sequel, miscellaneous petitions, if any pending and the Interim order granted earlier, if any, shall stand closed.

14.07.2025 CVD JUSTICE V. GOPALA KRISHNA RAO Date: